



SPONSOR: Sen. Wilson & Rep. Carson & Rep. Spiegelman
Sens. Buckson, Hocker, Hoffner, Pettyjohn; Reps. Berry,
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DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 212

AN ACT PROPOSING AN AMENDMENT TO ARTICLE I OF THE DELAWARE CONSTITUTION RELATING TO
HUNTING, FISHING, AND TRAPPING WILDLIFE.

1 WHEREAS, the right to hunt, fish, and trap wildlife has been a presumptive right among Delawareans since
2 colonial times; and

3 WHEREAS, these rights were assumed to belong to every law-abiding individual of proper age; and

4 WHEREAS, these rights have always been understood to be subject to certain limits and conditions; and

5 WHEREAS, it has long been understood that the State, and in some cases local governments, may set limits and
6 regulations on hunting, fishing, and trapping wildlife, including establishing hunting, fishing, and trapping seasons and
7 types of wildlife that can be sought by hunters, fishers, and trappers; and

8 WHEREAS, in an age when more and more of our long-held rights are being challenged by various groups and
9 individuals in various ways and for various reasons, it seems timely to add this hallowed right to those that are spelled out
10 Delaware's constitution; and

11 WHEREAS, this Act does not seek to create any new rights, but rather to enshrine a right that has been part of our
12 common heritage throughout our State's history.

13 NOW, THEREFORE:

14 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all
15 members elected to each house thereof concurring therein):

16 Section 1. The General Assembly finds and declares all of the following:

17 (1) The right of an individual to hunt, fish, and trap wildlife is a valued part of Delaware's natural heritage and
18 is forever preserved for the public good.

19 (2) Hunting, fishing, and trapping wildlife is the preferred means of managing and controlling wildlife.

20 Section 2. Amend Article I of the Delaware Constitution by making deletions as shown by strike though and
21 insertions as shown by underline as follows:

22 § 22. Right to hunt, fish, and trap wildlife.

23 (a) Subject to subsections (b) and (c) of this Section, an individual has the right to hunt, fish, and trap wildlife in
24 this State, including by the use of traditional methods.

25 (b) The General Assembly may prescribe laws and, if authorized by the General Assembly by law, state agencies
26 may adopt regulations and local governments may prescribe ordinances, to do all of the following:

27 (1) Promote wildlife protection, conservation, replenishments, and management in this State.

28 (2) Preserve the future of hunting, fishing, and trapping wildlife in this State.

29 (c) This Section may not be construed to do any of the following:

30 (1) Limit the application of a law relating to trespass or property rights.

31 (2) Affect the rights to divert, appropriate, or use water, or to establish a minimum amount of water in any
32 water body.

33 (3) Lead to a diminution or abrogation of a public right, private right, or this State's power to regulate
34 commercial activities.

35 (4) Prevent the suspension or revocation, under a law enacted by the General Assembly, of an individual's
36 hunting, fishing, or trapping license.

37 (5) Alter a burden of proof requirement otherwise established by law for a challenge to a law or regulation
38 pertaining to hunting, fishing, or trapping wildlife in this State.

SYNOPSIS

This Act is the first leg of a constitutional amendment to establish the right to hunt, fish, and trap wildlife in Delaware. Twenty-one other states have preserved the right to hunt, fish, and trap wildlife. This Act is modeled after the constitutional provisions of Idaho, Indiana, Kentucky, Louisiana, Minnesota, Tennessee, Virginia, and Vermont.

This Act specifically acknowledges Delaware's valued, natural heritage of hunting, fishing, and trapping, and declares hunting, fishing, and trapping as the preferred methods of managing and controlling wildlife in this State.

This Act declares that it may not be applied to do any of the following:

(1) Limit the application of a law relating to trespass or property rights.

(2) Affect rights to divert, appropriate, or use water, or to establish a minimum amount of water in any water body.

(3) Lead to a diminution or abrogation of a public or private right or of the State's power to regulate commercial activities.

(4) Prevent the suspension or revocation, under a law enacted by the General Assembly, of an individual's hunting, fishing, or trapping license.

(5) Alter a burden of proof requirement otherwise established by law for a challenge to a law or regulation pertaining to hunting, fishing, or trapping the wildlife of this State.

Amending the Delaware Constitution requires not only the passing of the changes in this Act, but also passage of the same changes after the next general election by the next General Assembly.

This Act requires a greater than majority vote for passage because § 1 of Article XVI of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend the Delaware Constitution.

Author: Senator Wilson